



Seminar Paper

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Introduction :- Local government is now recognized as an integral part of development. Besides, this system is a significant element in the practice and development of democracy at the grassroots level. There are very few countries in the world where democracy is not consolidated but a strong local government. The modern state is huge in terms of size and population. It is not possible for the government to fulfill all the responsibilities sitting at the center properly, at the same time the responsibility of the government in the public welfare state system is constantly increasing. In this situation, the central government delegates various tasks to the local government through decentralization in order to take effective steps to solve local problems. Local governments play an effective role in the successful implementation of democracy as well as in carrying out public welfare activities. Therefore, the establishment of democracy is very important in the national development and progress of the local government. Moreover, in this system the people take part in development activities at the local level and their skills and local government are called the birthplace of democracy because through it the people learn the practical lessons of participating in political activities. The importance of local government in empowering women in Bangladesh, infrastructural development, raising awareness, participating in politics and conducting various public welfare activities is immense. But, in Bangladesh there are some negative situations too. The local government system in Bangladesh faces many challenges till now before the pandemic and after the pandemic it's been increasing. There are very few countries in the world where democracy is not consolidated but a strong local government. This system has been restructured at various times in order to strengthen the local government system in post-independence Bangladesh. However, since those steps do not play a proper role, the actual picture indicates something completely different. The local government system of this country is plagued with various problems for various reasons. Besides, these institutions face many challenges till now. In spite of various problems, there is a great possibility of consolidating the local government system which will complete the democratic structure of the country in the near future.

Objectives of the Study :-

Through this seminar paper we will be able to learn about the following things:-

- 1) To know about the existing scenario of local government in Bangladesh.
- 2) To know about some problems and challenges of the local government in Bangladesh.
- 3) To know about some recommendations to solve/ overcome these problems.

Rationale of the Study :-Bangladesh is an emerging developing country. Bangladesh is one of the most densely populated countries in the world. The government will not be able to meet the daily needs of this huge population from the center. Therefore, along with the central administration, local level governance has been established in this country for ages and is gradually improving. Their participation in the governance process is very important for the security of the local people, alleviation of their hardships and meeting their needs. Local governance opens the door for people's participation in local level development.

Moreover, there is no alternative to timely and elected local government institutions to ensure mass empowerment and establish a full-fledged democratic system. It's a matter of great sorrow that despite being a widely discussed issue in Bangladesh, the reality is different. Different governments have taken various measures at different times to make the local government system effective and dynamic but in reality this system has not been able to be effective or dynamic. There are various reasons and challenges behind the non-functioning of the local government system in Bangladesh and there is a strong possibility of the same if we overcome this challenges. We, as students of political science, have identified the mentioned subject as the topic of our seminar to give a clear idea about it.

Conceptual Understandings of Local Government

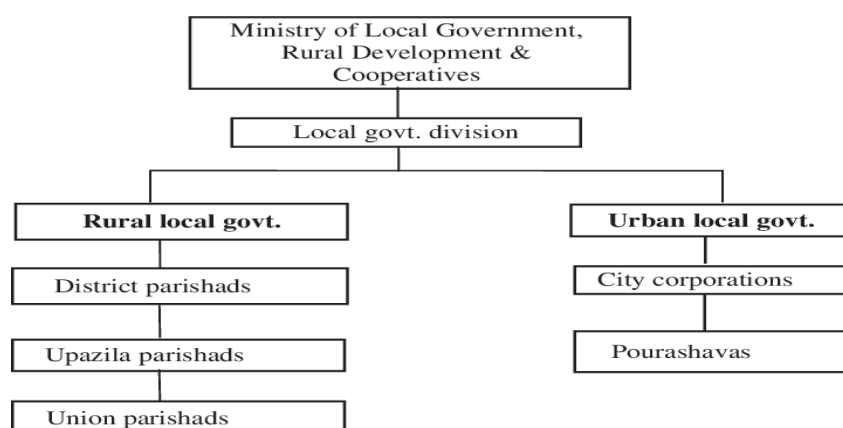
Concept and Definition of Local Government :- The word local is derived from the word locus which literally means region. So local government means region based government. Local government is basically a limited area of responsibility on behalf of the central or provincial government in a small area. As the scope of work of the government increases exponentially in the welfare state system, the central or provincial governments delegate various functions to the local government to reduce their scope of work. Local government acts on behalf of the central or provincial government to maintain law and order. There are many scholars who define the term "local government" by their own perspectives. According to Daune Lockard, "Local Government is a public organisation authorized to decide and administer a limited range of public policies within a relatively small territory that a subdivision of a regional or national development."**[1]**

According to the United Nations, "the term local government refers to a political subdivision of a nation or state which is constituted by law and has substantial control of local affairs, including the power to impose taxes or exact labour for prescribed purposes."**[2]**

"Kingdom says that local government is the self-government of sub-national territorial units of the state. It is found in virtually all developed politics as a complement to central government and is generally seen as a sign of a healthy democracy; a check on state power. Indeed, its elimination is generally taken as a symptom of totalitarianism."**[3]**

Local Government in Bangladesh : An Overview

Existing Scenario of Local Government in Bangladesh :- Local government system in Bangladesh can be categorized distinctly for rural areas and urban areas. In rural areas the local governments are now 3 tiers namely, Zila Parishad, Upazila Parishad and Union Parishad and 2 tiers in Urban areas namely, City Corporation and Paurashava. Local government is presently operated by different laws in Bangladesh including Zila Parishad Act(2000), Upazila Parishad Act(1998), Local Government (Union Parishad) Act (2009), Local Government (City Corporation) Act (2009) and Local Government (Paurashava) Act (2009) for conducting Zilla Parishad, Upazila Parishad, Union Parishad, City Corporation, and Paurashava respectively.



Problems of Local Government in Bangladesh :

- 1) **Absence of Real Autonomy:** - Although different types of laws have been enacted for the purpose of providing self-government to the local government, the real picture is completely different. Still the de facto relationship-control over local bodies has not changed in considerable amounts excluding corporations. The Local Government, Rural Development & Cooperatives ministry did not put up any crucial initiatives for relaxation of control or devolution of powers in this account. "A serious constraint on both rural and urban local government is its dependence on central government. One authority describes the relationship between national and local government as a 'clear patron-client relationship'." [4]

- 2) **Financial Control over Local Bodies:-** Local government bodies have been chronically resource-poor in Bangladesh. "Local Government bodies are compelled to take loans or grants from the central government at almost every aspect of Union Parishad".[5]The one of the most common problems which is faced by local governments is financial scarcity and insignificant funds. When compared to their scope of work, their source of income is very inadequate. The main source of their income is various types of taxes. There are also rates, fees and charges levied by the local body, and rents and profits accruing from properties of the local body and sums received through its services. "Financial aspects such as; tax, budgetary producer and allocation of money and projects have been controlled by the Central government through its administration. For example- The Union Parishad has no direct control even over resources generated from their jurisdictions. Such practice of regulating and controlling of the financial resources by the national government functionaries keeps the LG units forever resource-poor and resource-dependent on the national government."[6]

- 3) **Political Instability:-** Stable political environments play an important role in running the local government system smoothly. However, political violence in Bangladesh has taken a terrible turn at present. Conflict between the government and the opposition is a daily occurrence in this country. If there is political instability, it becomes very difficult to practice locally governing the system properly in this country.

- 4) **Low Effectiveness:-** In perspective of insufficient accounts, the local bodies don't possess the capacity to satisfy their necessities. Therefore, they face a nonstop outcry from the government. moreover as public. the requirement i.e., water cannot be supplied properly, drainage facilities is improper, unplanned colonies together with slums are on ascendance, danger of stray cattle on the streets continues, traffic is unplanned, streets don't seem to be legitimately maintained and risky structures are permitted, notwithstanding the conspicuous risk to the inmates and therefore the tenants of the territory. Summing up, poor sanitation, poor cleanliness and lack of essential necessities make urban communities dangerous.

- 5) **Lack of Functional knowledge:-** Lack of awareness of local government representatives about their responsibilities and powers. Chairman, members do not know properly about the mandatory and optional functions of the concerned council as per law. Elected female representatives also cannot take effective action due to ignorance or they are neglected. Mandatory and optional activities of different levels of local government are prescribed. For example: Union Parishad has 10 compulsory and 36 optional functions. The district council has 12 compulsory and 6 optional

functions. Due to manpower and managerial reasons, it has become a problem. Moreover, how realistic all the functions are in the local context is also a matter.

- 6) **Excessive Controlled by Administrative Officials:-** According to the Constitution of Bangladesh, local government institutions of government should be encouraged rather than controlled. But the reality is completely different. Administrative officials are often seen controlling local government institutions that are in conflict with the constitution. Although different types of laws give local government bodies the responsibility to levy taxes in different cases, in many cases this is not possible due to the orders of the executive.
- 7) **Absence of Proper Decentralization :-** In Bangladesh, the perfect form of decentralisation is being absent. Here the system of decentralisation characterised by:- a) supremacy of central government and local government over dependent on central government, d) absence of representative character, c) dominated by central government, d) insufficient mobilization of local resources, e) limited participation of the rural poor in the decentralised bodies, f) basically, it considered as a deconcentration process, etc. Moreover, without a proper decentralization process, the local government cannot obtain its real effectiveness.
- 8) **Lack of Adequate Financial Solvency :** Local Government Institutions do not have adequate funds. ADP allocation for local government is only 3.9%. Taxes collected locally are the only source of revenue. There is no incentive to raise taxes at the local level for fear of losing popularity. They think that they will not get votes in the future and will not be able to get elected. Probably Dhaka City Corporation has not increased the holding tax for the last 16-17 years. That is why local government institutions are financially indigent.
- 9) **Lack of Adequate Manpower:-** There is a shortage of adequate manpower in local government institutions. For example, manpower for a Union Parishad is only 11 people - 1 Secretary, 1 Village Police or Dafadar, 9 Chowkidars. Their salaries and allowances are very meager. The Chairman, 12 members (including 3 reserved women) acted as elected representatives.
- 10) **Lack of Wise Leadership:-** The people's representatives of the local level governance system of Bangladesh are often not very educated. They became part of the system of government mainly because of their popularity in the democratic system. They are often seen as dependent on local government officials. Lack of skilled leadership hinders development and progress at the local level.

- 11) **Prone to Corruption:-** Corruption is the root of all problems. "Bangladesh is 13th in the list of top corrupt countries." [7] Corruption is rampant in almost every sector here. The effect of which is also being observed at the local government level. It is not uncommon for local government representatives to embezzle government aid allocated to the needy, which is never desirable, and the purpose for which the local government system was set up is completely lost.

Challenges of Local Government in Bangladesh:-

- 1) **Financial challenges:** Devolving functions is meaningless without providing adequate funds to hold out said functions. After many years of decentralisation, in the local government perspective, expenditure as a percentage of GDP is only two percent—a number that's extremely low when put next to other major emerging economies like China (11%) and Brazil (7%).
Most local bodies, both rural and urban areas are unable to get necessary funds from their internal sources, and are therefore extremely rely on external sources for funding. There are two main reasons for low taxation collection:
 - Local bodies may lack the capacity to properly impose taxes, because of ambiguous taxation norms, lack of reliable records, and so on.
 - The Central government hasn't devolved enough taxation powers.

- 2) **Functionary challenges:-** The capacity of local bodies to hold out their mandate is commonly circumscribed by the government's authorities. Additionally, the secretariats of local governments are grossly under-staffed and under-skilled, and so unable to produce the specified support to the elected body. Their capacities need to be further strengthened through training of existing personnel and also the recruitment of latest staff. Though local bodies are authorised to recruit staff, this is often prevented by limited funding. The system of local government in Bangladesh must be empowered in three areas to confirm that power truly rests with the people, not just on paper, but also in practice.

- 3) **Corruption:-** Corruption is the root of all national problems of Bangladesh. It abuses power for personal gain and undermines the rule of law. Corruption affects everyone, especially the poor. In most of the South Asian countries, including Bangladesh, corruption has become a permanent threat to public life and a threat to democracy and

development. In recent years, the level of corruption in Bangladesh has spread so alarmingly that it has severely affected the local government. "Being one of the most corrupt countries in the world, Bangladesh with its severe governance problems can only ignore the needs for combating effectively the menace of corruption at its own peril"[8]. "The negative implications of corruption are conspicuous: it inhibits the operation of market forces, creates bottlenecks in administrative processes, prevents justice and fairness, dampens the spirit of public service and impedes sustainable development." [9]. If we look at Upazila Parishad, here it's economy is fragile. Actually, such an economy leads to increased levels of poverty and then creates corruption. "According to many studies and annual reports, the local government department has been identified as top corrupt sector in Bangladesh for the last couple of years. In Bangladesh, corruption at local level, to some extent, is different from national level. In local level poverty is a known factor that encourages corruption and the types of corruption are embezzlement of funds provided by the government, nepotism and politicization in distributing goods and services, contractor-engineer-elected bodies nexus in construction works etc."[10] "Local infrastructure development, especially construction of roads, bridges, culverts and re-excavation of ponds, canals etc. are major works usually undertaken by the local government. In the first case, where the representatives in collusion with officials and other agents make private gains mainly through accepting commissions and bribes while carrying out development works. Besides, one of the justifications of corruption is that commissions and payments are accepted to recover election expenditure." [11]

- 4) **Accountability and Transparency :-** Transparency and accountability are important determinants of good local governance which has always been underestimated in the context of Bangladesh. Transparency is the basis of accountability which means conducting activities according to rules which will include clarity of action and accountability gives legitimate authority responsibility for their work. These are the basic requirements of democracy and participatory governance. "Transparency and accountability allows people to see what their authorities are doing, how decisions are taken, where their money goes and what it delivers. Four actors are typically relevant in local accountability systems: local residents, local governments, producers of local government services, and higher levels of government (including central government)." [12] Political accountability is one of the most important determinants in ensuring good governance at the local level. Besides, political accountability can also be developed by having elected local bodies officials, investigate local executives, increasing consciousness about policy performance of local governments, or engaging citizens directly in decision making beyond elections. The mechanisms of accountability in the entire local government system of Bangladesh are very weak and conventional. For example, the recent Upazila Parishad Act has provided very weak and limited accountability mechanisms. An indistinct accountability mechanism mentioned in the section 40 and 52 of the Upazila Parishad Act 2009 is only limited to

auditing and investigation by an authority of the government. However, accountability means something more than just auditing and investigation including people's participation, public hearings, easy access to information, role of the stakeholders and participation of the opposition political leaders in the full system of mechanism.

- 5) **Conflict among Elected Representatives and Government Officials :-** Only through proper understanding, coordination and evaluation between elected representatives and government employees can local government be implemented and good governance established. Here various steps we can find lots of troubles among the government officials and elected representatives. It's also caused by the obscurity of various local government acts. Like, Some sections of the present Upazila Parishad Act have created conflict between the Upazila Chairman and the Upazila Nirbahi Officer namely this Act further complicates the situation which says Upazila Chairman is the Chief Executive and the UNO is the Principal Executive Officer of the parishad. The difference between the two is still unclear. Now the UNOs claim that they are the representative of the central government on the other hand the Upazila Chairman claims that they are elected representatives so they are the main decision makers of the Upazila. Infact, proper coordination totally depends on understanding among government officials, Upazila Chairman and the people. Some part of this understanding comes from law, some from quality of leadership and cultural practice. Presently all these practices are absent. "Moreover, the Upazila Parishad Act has been made in a manner that allows the people outside of the parishad to intervene in its activities and that section 25 of the Act disempowers the Upazila Parishad giving lawmakers the opportunity to intervene." [13]

- 6) **Ensurance of Right to Information :-** In a decentralized local government system, the people have every right to know what decision has been passed and to give their opinion on it. In order to get information or any documents, there should be a standard system in every department of local government. To make local government activities more transparent, accountable, and up-to-date. In addition, local government budgets, important negotiation decisions, annual work statements, annual income-expenditure statements must be displayed on the notice board for public comment. Such a practice must be started to strengthen the local government system and establish good governance.

- 7) **Resource Mobilization :-** The primary function of local government bodies was to raise local taxes and use them to carry out local development work. However, most of the local government institutions are playing a weak role in raising local taxes so that the institutions cannot be run from their own income. In Spite of its being empowered by Local Government regulations to mobilize resources from local sources through

assessment and levy of taxes, leasing of local hats, bazars, water bodies etc. Local governments do not receive the total resources generated from their entitled sources. "For instance, in case of Union Parishad(UP), of the revenue generated from the leasing of the rural market, 25% is retained by national government, 10% by the Upazila, 15% is earmarked for the maintenance for market and the rest 50 % is the entitlement of the UP. Another feature of financial control is that the UNO receives funds transferred from Union Parishad mobilised resources like share of land transfer tax, market lease money for retention in the accounts maintained by him for later distribution to UPs on the basis of prescribed government guidelines." [14] This type of practice of regulating the financial resources by central government functionaries keeps the local government units ever resource poor and rely on the central government on financial issues.

- 8) **Institutional Capacity :-** Institutional capacity refers to both human capacity and logistics. Various studies have shown that most local government chairmen and members have no knowledge of the operational procedures and activities of these institutions. They are unconscious of the complex rules and regulations relating to budgeting, planning, resource mobilization. For example, "UP is required to maintain and preserve more than 100 registers. It is a huge task considering the managerial capacity of the LG unit. In effect , very few registers are actually maintained. This is due to the fact that very little efforts have been made over the years to impart training in the relevant fields of local institutional operations to the elected officials and the UP secretaries." [15] Inadequate physical facilities in most of the LG units are one of the prime concerns all over the country.

- 9) **Post Pandemic Challenges:-** Local Government system and its institutions at various stages have badly effected by Covid-19. The pandemic has exposed the weaknesses of local government. During this institutions activities were not properly observed. As a consequences, the local citizens have to face various problems. During the pandemic local governments systems was not technically equipped to deal with such types of pandemic coronavirus diseases in terms of man-power and equipment. There should be adequate financial allocations in annual development programs of LGs but the total scenario was completely different. However, the Coronavirus pandemic is more severe than any form of natural disaster and can only get worse. Keeping this reality in mind, the City Corporation and the Paurashava Disaster Management Committees must be activated to render the best possible support to prevent the spread of the deadly virus. The impact of the COVID-19 pandemic could be minimized through proper disaster management planning and by integrating disaster management activities with local and national development plans. It is apparent that effective coordination is an essential ingredient for disaster management. The public representatives of the City Corporations and the Paurashavas

need to be equally oriented towards the software issues as they are towards the hardware issues. Among the software issues, awareness building towards public health is an important matter. The mindset of the public representatives of LGs i.e., the Mayors and the Ward Councilors are to be attuned towards undertaking all possible measures to deal with the issues relating to the "COVID - 19" considering as one of their responsibilities that come within the purview of ensuring public health of the people in post covid situation.

Recommendations:-

Following are some significant steps to make the local government system of Bangladesh efficient and productive,

- 1) **Dedicating Political Leadership:-** The political leadership must commit itself to creating an effective and decentralised LG system with guaranteed powers and authority. It is not enough to pronounce a pledge in the election manifesto; the pledge must be put into a reality. The mainstream political parties must move away from their confrontational political culture towards a more responsive and representative political culture. This will pave the way for reaching a consensus on an effective LG system and may lead to stop frequent changes in the structure of LG which usually take place in Bangladesh with the changes of government.
- 2) **Increasing Revenue Generating Capacity of LG:-** The revenue generating capacity of LG units should be increased to meet funding requirements for effective service delivery. For extension of the preview of revenue, certain steps can be taken: 1) transfer of authority for collection of Land Development Tax and Immovable Property Transfer Tax; 2) demonstrating the leasing process of Sairat Mahal; 3) management of rural Hat and Bazar; 4) issuance of Municipal/Local Bonds; 5) introduce micro-credit programs for connecting local poor people into income generation activities, 6) bringing the NGOS working in local areas under certain portion of taxation. The revenues collected from legally sanctioned sources have to remain in the accounts of the respective LG units and used for purposes decided by them within the legal framework.
- 3) **Capacity Building of Local Government Representatives:-** Empowerment without capacity building is meaningless, and thus the government needs to organise the

capacity building programmes for the elected local government representatives so that they can prepare themselves to efficiently discharge their responsibilities.

- 4) **Exercising Open Space Budgeting:-** To improve transparency and accountability, it is necessary to practice open space budgeting exercises involving local people from all strata. Likewise, urban baithak and publication of annual reports incorporating the previous year's development activities and its performance can be useful to stakeholders.
- 5) **Constituting Independent Local Government Commission :-** A permanent Independent Local Government Commission should be constituted with appropriate powers and authority to look after the affairs of local government including allocation of financial resources and their auditing, resolving inter-local government disputes and controlling the LG personnel matters such as recruitment, transfer, promotions, discipline and so on. Thereafter, the role of Ministry of LGRD should be limited to policy guidelines only.

Conclusion:- In modern states, there is a great importance of the local government because the burden of the central government is lessened by it. Therefore, local bodies should be properly decentralized. In order to develop a comprehensive decentralization strategy for strengthening the local government in Bangladesh, a sustainable and practical strategy must be taken properly. There are lots of problems and challenges existing inside the local bodies. However, appropriate and effective steps should be embodied to make a strong and effective local government system in Bangladesh. Therefore, in order to solve the problems fruitfully the local bodies should not be used as the tools of the central government for achieving their political purpose. Finally, the local administration has gained special importance in the expansion of democratic governance as the local government system ensures the participation of the people by removing the complexities of centralized governance. Therefore, there is no alternative to develop local government in ensuring the overall participation of the people and in the development of democratic practices to reach the grassroots level along with the central government.

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